

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-24

Southern International Co., LTD

Complainant,

Daynamez Group of Companies LLC

Respondent.

VERIFIED ANSWER AND AFFIRMATIVE DEFENSES AND COUNTERCLAIM

Comes Now the Respondent, Daynamez Group of Companies LLC (hereinafter referred to as Daynamez) and files its Verified Answer and Affirmative Defenses and Counterclaim to the Second Amended Complaint filed by Southern International Co. LTD (hereinafter referred to as SIC) due to scrivener errors which is as follows:

I. INTRODUCTION

1. Denied.
2. Denied.
3. Denied
4. Admitted that there were some Net/Net transactions with Vietnamese NVOCCs but otherwise denied.
5. Denied.

6. Denied.

7. Denied.

8. Denied.

II. COMPLAINANT

9. Without knowledge so denied, although admitted that the Complainant represents that it is an OTI which includes being a NVOCC.

III. RESPONDENT

10. Admitted.

11. Admitted that Daynamez has characterized itself as a sales agent, otherwise denied.

12. Admitted that what is written states that the Respondent deals with shipments from USA/Canada ports, not from foreign ports to the United States, so denied that this has any applicability to the issues in this case which are for inbound shipments from foreign countries.

13. Admitted that Net/Net freights were utilized, otherwise denied.

14. Admitted that Daynamez does not have an OTI license, otherwise denied.

15. Admitted that some money was forwarded by SIC to the Respondent to be used for the release of the cargo for freight in the United States but otherwise denied.

IV. JURISDICTION

16. Denied.

17. Denied as this case has nothing to do with shipments on inbound cargo.

18. Admitted that language was used on the web site, that it is a forwarder for goods from the USA Canada to foreign ports, otherwise denied.

19. Admitted that there were Net/Net rates but otherwise denied.

20. Denied as Respondent was not the booking agent.

21. Denied.

22. Admitted.

23. Admitted.

24. Denied.

25. As to the First paragraph, the Respondent is without knowledge as to what is within its knowledge of the Complainant.

As to the Second paragraph, Daynamez is without knowledge as to when this was taken so denied.

As to the third paragraph, this is admitted.

As to the fourth paragraph, it is admitted.

As to the fifth paragraph, without knowledge so denied.

26. Denied.

27. Denied.

V. FACTUAL ALLEGATIONS

28. Admitted that a sales agreement was entered into which is attached to the Complaint as Exhibit A and was prepared by SIC.

29. Admitted.

30. Denied as Daynamez did not handle shipments. It was a sales agent, not a NVOCC.

31. Admitted that it would provide arrival notices and would sometimes transfer money to a representative for the forwarders and/or NVOCCs at their offices in the United States, and that the Complainant was supposed to remit profit to the Respondent, otherwise denied.
32. Admitted that Respondent quoted rates, that Respondent would contact the forwarders and/or NVOCCs in Vietnam about completing the arrangements, otherwise denied,
33. Denied.
34. Denied.
35. Denied.
36. Denied.
37. Admitted SIC and/or customer failed to make payments, otherwise denied.
38. Admitted that Daymanez ceased operations as SIC defaulted on making payments for the freight as well as not paying Daymanez. Additionally, SIC abandoned another shipment.
39. Denied.
40. Denied to the extent that this is accusing Daymanez of any wrongdoing. The only wrongdoing was when DGS Logistics was not paid by the Complainant and cargo was abandoned for which DGS is claiming money against the Respondent.
41. Denied to the extent that it is accusing Daymanez of wrongdoing. Any delay was due to the improper conduct of the Complainant in not paying the freight bill.

VI. LEGAL VIOLATIONS

42. Realleged and incorporated allegations in paragraphs 17 through 41.
43. Admitted that the statutes exist, but they do not apply to the Respondent who is not an NVOCC.

44. Denied.

45. Admitted that it provided Net/Net freight rates, but the part of the web site relates to outbound cargo, but not inbound cargo and otherwise denied.

46. Admitted.

47. Denied.

Denied.

COUNT VII: VIOLATION OF 46 U.S.C. 41102(c)

48. Realleged and Incorporated paragraphs 17 to 41.

49. Admitted that this is a statute but denied that it applies to the Respondent.

50. Denied,

51. Denied.

52. Denied.

53. Denied.

54. Denied.

55. Denied.

56. Denied.

57. Denied.

The Wherefore clause is denied.

Any and all allegations not specifically responded to are denied.

AFFIRMATIVE DEFENSES

1. The Respondent was not acting as an NVOCC as it never issued bills of lading nor was it listed as the Shipper on the bills of lading. There were several bills of ladings .

issued by companies in Vietnam and therefor there is no subject matter jurisdiction.

Under the functional test the Respondent is not an NVOCC.

2. That even if the Complainant can prove that the Respondent performed a service under the Statute defining an NVOCC, it is not determinative that it was acting as an NVOCC under the functional test.
3. The agency agreement does not state anywhere that either party was acting as an NVOCC and therefor there is no subject matter jurisdiction.
4. Daymanez was not the shipper on any of the bills of lading that were issued on this matter and therefore is not an NVOCC.
5. The Respondent did not do any consolidation with the cargo which is a NVOCC duty and is further evidence that it was not acting as an NVOCC.
6. That Daymanez was not acting as the intermediary between the shipper and the actual ocean carrier that physically transported the cargo and therefor cannot be an NVOCC.
7. That in fact SIC alleges that it is an OTI with the Federal Maritime Commission which would make SIC an NVOCC with regard to the shipments.
8. That it is believed that SIC was the shipper on some of the bills of lading which is evidence that SIC was the NVOCC on at least some of the shipments.
9. There were actual NVOCCs on all of those shipments with licenses that issued bills of lading, and they are obviously the NVOCCs on these shipments, not Daymanez.
10. That Daymanez is a Virginia based company and does not advertise that it is a forwarder or NVOCC on inbound shipments.
11. That ocean freight forwarders handle outbound cargo so that the Respondent cannot be held to be an Ocean Freight Forwarder.

12. That NVOCCs based in the United States handle outbound cargo. This is an inbound shipment.

13. That it is the Respondent who is owed money, not the Complainant. Pursuant to the attached documents, Respondent owes Daynamez money. **Exhibits A, B, and C.** There were also dealings with a company named DGS Logistics where the Complainant never paid DGS Logistics and abandoned the cargo resulting in a claim against Daymanez for which it is seeking indemnity and a hold harmless agreement.

14. The Complaint is suspicious as it seems incredible that the Complainant would be dealing over a long period of time with this many shipments if in fact it really thought that Daymanez was breaking the law and absconding with money.

15. That this is a breach of contract action and not a cause of action under the Shipping Act and should be dismissed.

16. That venue is improper here as the contract states that it belongs in arbitration in Vietnam.

Wherefor the Respondent would ask that the case be dismissed with prejudice and that it be awarded its costs and attorney fees and any other relief allowable by law.

COUNTERCLAIM

1. Daynanez realleges each and everyone of its foregoing answers and Affirmative Defense.

Count I Indemnification, Defend, and Hold Harmless and violation of the Shipping Act

2. That although it is contended that there is no jurisdiction over the case in chief, Daymanez would make this its counterclaim as SIC withheld funds that were supposed to be paid to DGS Logistics for transported and abandoned cargo.

The Respondent is seeking to be indemnified and held harmless as the problem was with SIC refusing to pay a bill. See letter from attorney. **Exhibit D.**

3. The actions of SIC are a violation of the Shipping Act of 1984 46 USCA 40101 et al.

4. The Complainant did not follow through and provide funds for these shipments to the Respondent or anyone else.

5. It is curious that there is no mention of the items in this Count in the Complaint.

6. That additionally, Daymanez is seeking damages for loss of business and reputation including with OOCL Shipping Line who is the ultimate party that is owed money and is seeking damages against Daymanez

7, That the actions of SIC in the handling of the shipments is a violation of 46 USCA 41102(a) for not maintaining proper practices relating to the handling and receiving of cargo as it left Daymanez vulnerable due to its failure to properly handle the cargo by letting it become abandoned.

Wherefor Daymanez is seeking indemnity and a hold harmless for this claim as well as for loss of business and other consequential damages for loss of its reputation.

Count II-Breach of Contract and violation of the Shipping Act.

7. Daymanez realleges paragraphs 1 through 6.

8. The parties entered into a sales agreement which resulted in SIC owing Daymanez money under the Net.Net agreement which it aims is governed by the Federal Maritime Commission.

9. Attached are records showing that the Respondent is owed money. **Exhibits A, B, and C.**

10. At the time of the incidents and the failure to pay, SIC was an OTI with the Federal Maritime Commission according to its pleadings.

11. It wrongfully withheld payment to Daymanez.

12. That as per the attached documents, it is owed money.

13. This is also a violation of 46 USCA 41102(a). As previously stated, SIC alleges that it is an OTI, that is an Ocean Freight Forwarder and NVOCC which are subject to the jurisdiction of the Federal Maritime Commission.

Wherefor Daymanez is seeking damages against SIC including the money owed as well as court costs interest and attorney fees.

The Respondent Requests an Oral Hearing.

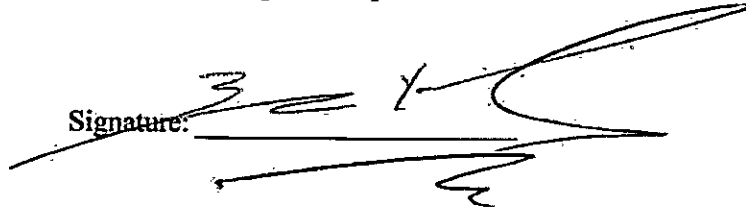
VERIFICATION

1. I, Zia Kamali declare under penalty of perjury under the laws of the United States that I am the Manager of Daynamez Group of Companies LLC. and that I have read the foregoing Answer and Affirmative Defenses and Counterclaim in FMC Docket 25-24 and that the statements made therein are true and correct to the best of my knowledge, information, and belief.

Executed on this 27th day of March 2026, in Fairfax, Virginia

Manager

Daynamez Group of Companies LLC.

Signature: 

CERTIFICATE OF SERVICE

I certify that on the 27th day of March 2026 a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

Mr. Nguyen Tien Phuong

Southern International Co., LLC

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Dated:

March 27th, 2026

Respectfully submitted, Daniel W. Raab, P.A.

s/Daniel W. Raab

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